2023:JKLHC-SGR:236

S. No. 74
Supp. Cause List

IN THE HIGH C0URT 0F JAMMU & KASHMIR AND LADAKH
AT SRINAGAR

CM (M) No. 16/2023
CM No. 454/2023

Dr. Naiem ul Haq …Appellant/Petitioner(s)

Through: Ms. Syed Urfa Aijaz, Adv.

Vs.

Laila Khan and Anr. ...Respondent(s)

Through: None

CORAM:
HON'BLE MR. JUSTICE JAVED IQBAL WANI, JUDGE

ORDER
09.02.2023

Through the medium of the instant petition filed under Article 227 read with Article 226 of the Constitution, order dated 13-12-202 passed by the Principal District Judge, Shopian in case titled as *"Dr. Naiem ul Haq vs. Laila Khan and Anr."*

The facts emerging from the petition would reveal that the petitioner and respondent herein had been married and subsequently divorced having a male child namely Nayham Arhar born out of the said wedlock who after divorce has been living with respondent-mother.

The petitioner is stated to have filed a petition under Section 25 of the Guardian and Wards Act, 1890 for custody of the said child on the ground of being natural guardian as against the respondent-mother. Accompanying the said petition, the petitioner had also filed an application for interim order for permitting the petitioner to have visitation rights qua the minor whereupon the court below passed the impugned order in terms whereof the visitation rights came to be granted to the father-petitioner by directing respondent-mother to bring the child in the Mediation Center of District Court Complex, Shopian fortnightly/every alternate Saturday and allow the interaction of the child with the petitioner-father from 12 noon to 2:00 pm. The said impugned order is being alleged to be unreasonable, unfair and against the spirit and object of the Act of 1890.

Heard learned counsel for the petitioner and perused the record.

The object and purpose of visitation rights has been considered and dealt with by the Apex Court in case titled as ***"Roxxan Sharma vs. Arun Sharma" reported in 2015 (8) SCC 318*** wherein it has been observed by the Apex Court that a visitation order means an order establishing the visiting times for a non-custodial parent with his or her child/children and although the non-custodial parent is responsible for the care of the child during visit, visitation differs from custody because non-custodial parent and child do not live together as a family and that essentially the visitation rights enable the parent who does not have the interim custody to be able to meet the child without removing him/her from the custody of the other parent.

Admittedly the court below has overlooked the aforesaid observations of the Apex Court passed in the Judgment supra and without expressing any cogent reason has fixed the visitation time of the petitioner-father with the child from 12 noon to 2:00 pm which by no sense of imagination can said to be either reasonable or for the welfare of the child who on account of being in custody of the respondent-mother has no regular access to the love and affection of the petitioner-father. The order impugned to this extent seems to be unreasonable.

Thus without commenting upon the merits of the case, the entitlement or otherwise of the petitioner or the respondent to the custody of the child, lest it may prejudice the rights and interests of the parties, the impugned order requires to be modified to the extent by providing that the respondent-mother shall handover the temporary custody of the child to the petitioner-father on every Sunday at 10:00 am at her residence for interaction till 5:00 pm and the petitioner-father shall on the very same day (Sunday) handover the custody of the minor child back to the respondent-mother at her residence without any fail. It is made clear that this shall be a temporary arrangement and shall remain in operation initially for a period of one month commencing from today and shall be subject to the passing of any fresh order by the court below as may be warranted in the facts and circumstances of the case.

Petition shall stand disposed of accordingly.

It is also made clear that nothing hereinabove shall be construed to be expression of any opinion on the merits of the case.

(JAVED IQBAL WANI)
JUDGE

SRINAGAR
09.02.2023
Sakeena

HIGH COURT
JAMMU & KASHMIR AND LADAKH